

Norstar Junior Inline Hockey Club

Data Protection Policy

INTRODUCTION

This Policy sets out the obligations of Norstar regarding data protection and the rights of members, volunteers and any other data subjects. This includes obligations in dealing with personal data to ensure that the organisation complies with the requirements of the relevant legislation, namely the General Data Protection Regulation (GDPR).

The Regulation defines “personal data” as any information relating to an identified or identifiable.

Natural person (a data subject); an identifiable natural person is one who can be identified directly or indirectly, in particular by reference to an identifier such as a name, and identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.

Norstar is committed not only to the letter of the law, but also to the spirit of the law and places high importance on the correct, lawful, and fair handling of all personal data, respecting the legal rights, privacy, and trust of all individuals with whom it deals.

SCOPE

This Policy sets out the procedures which are to be followed when dealing with personal data. The procedures and principles set out herein must be followed at all times by Norstar volunteers, agents, contractors, or other parties working on behalf of the club.

The policy covers both personal and sensitive personal data held in relation to data subjects by the club and applies equally to personal data held in manual and automated form.

All personal and sensitive personal data will be equally referred-to as personal data in this policy, unless specifically stated otherwise.

DATA PROTECTION PRINCIPLES

Norstar shall comply with the principles of data protection (the principles) enumerated in the General Data Protection Regulation. We will make every effort possible in everything we do to comply with these principles. The principles are:

1. Lawful, fair and transparent - Data collection must be fair, for a legal purpose and we must be open and transparent as to how the data will be used.
2. Limited for its purpose - Data can only be collected for a specific purpose.
3. Data minimisation - Any data collected must be necessary and not excessive for its purpose.
4. Accurate - The data we hold must be accurate and kept up to date.
5. Retention - We cannot store data longer than necessary.
6. Integrity and confidentiality - The data we hold must be kept safe and secure.

Lawful, Fair and Transparent Data Processing

The Regulation seeks to ensure that personal data is processed lawfully, fairly and transparently, without adversely affecting the rights of the data subject. The Regulation states that processing of personal data shall be lawful if at least one of the following applies:

- The data subject has given consent to the processing of his or her personal data for one or more specific purposes.
- Processing is necessary for the performance of a contract to which the data subject is a party or to take steps at the request of the data subject prior to entering a contract.
- Processing is necessary for compliance with a legal obligation to which the controller is subject.
- Processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.
- Processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the fundamental rights and freedoms of the data subject which require protection of personal data, where the data subject is a child.

Norstar will ensure that at least one of the conditions outlined above will be satisfied whenever any processing activities take place.

The club will also ensure that when processing special category data, it will identify both a lawful basis for general processing and an additional condition for processing this type of data. The additional conditions are as follows:

- Explicit consent
- Employment law – processing necessary in the context of employment law, or laws relating to social security and social protection.
- Vital interests – processing necessary to protect vital interests of the data subject (or another person) where the data subject is incapable of giving consent.

- Charity or not-for-profit bodies – processing is carried out in the course of the legitimate activities of these bodies, with respect to its own members, former members, or persons with whom it has regular contact in connection with its purposes.
- Data manifestly made public by the data subject.
- Legal claims – processing necessary for the establishment, exercise, or defence of legal claims, or for courts acting in their judicial capacity.
- Reasons for substantial public interest – processing necessary for this and occurs on the basis of a law that is proportionate to the aim pursued and protects the rights of data subjects.
- Medical diagnosis and treatment – processing is required for the purpose of medical treatment undertaken by health professionals, including assessing the working capacity of employees and the management of health or social care systems and services.
- Public health – processing necessary for reasons of public interest in the area of public health.
- Historical, statistical or scientific purposes – processing necessary for archiving purposes in the public interest, for historical, scientific, research or statistical purposes, subject to appropriate safeguards e.g. anonymised data.

In order to obtain personal data fairly and in a transparent manner, Norstar will make the data subject aware of the following at the time the data is collected directly:

- Identity of the controller and the data protection officer (or equivalent)
- Purpose and legal basis for processing. An explanation of the legitimate interest of Norstar will be provided if it is being used as the legal basis.
- Data subject's rights to withdraw consent, request access, rectification or restriction of processing.
- Data subject's rights to complain to the Data Protection Commissioner's Office
- Recipients of the personal data.
- Storage periods or criteria used to determine the length of storage.
- Legal basis for intended international transfer of data to a third country or organisation, including the fact that either the receiving country has an adequacy decision from the Commissioner or other appropriate safeguards are in place and how to obtain a copy.

Norstar will place notices and signs in a highly visible position, if it intends to record activity on CCTV or video.

The Data Subject's data will not be disclosed to a third party other than to a party contracted to Norstar and operating on its behalf.

Processed for Specified, Explicit and Legitimate Purposes

Norstar follows this purpose limitation principle and only collects and processes personal data for the specific purposes set out by the club. The purposes for which we process personal data will be informed to data subjects at the time their personal data is collected or not more than a month if obtained from a third party.

Norstar will not further process personal data in a manner that is incompatible with those purposes unless:

- the consent of the data subject has been obtained, or
- if the further processing is for archiving purposes in the public interest or scientific and historical research or statistical purposes and the appropriate safeguards are in place and there is no risk of breaching the privacy of the data subject

Adequate, Relevant and Limited Data Processing

Norstar follows this data minimisation principle and only collects and processes personal data for and to the extent necessary for the specific purpose(s) informed to data subjects.

Accuracy of Data and Keeping Data Up to Date

Norstar will ensure that all personal data collected and processed is kept accurate and up to date. The accuracy of data will be checked when it is collected and thereafter, also data will be kept up to date. Where any inaccurate or out-of-date data is found, all reasonable steps will be taken without delay to amend or erase that data, as appropriate. If Norstar has disclosed the personal data in question to third parties, the club will inform them of the rectification where possible.

- Remind members and volunteers on an annual basis to inform Inline Hockey Ireland of any changes to their details
- Conduct periodic reviews and audits to ensure that relevant data is kept accurate and up to date.
- If the lawful basis for a processing activity is consent then the club will review and refresh it at appropriate intervals, taking into account the particular context, including people's expectations, whether we are in regular contact, how disruptive repeated

consent requests would be to the individual. The club will also consider whether more regularly would ensure a good level of trust and engagement, but it will definitely refresh consent every two years. However, consent will be refreshed if anything changes.

- The club will ensure that once consent has been received from the data subject for further marketing, thereafter, there will be an “unsubscribe” facility on all further correspondence, thus allowing the data subject to withdraw consent. ➤
- Amend inaccurate data which has been notified to Norstar by the Data Subject or is revealed as a result of a subject access request.

Timely Processing

Norstar follows this storage limitation principle and does not keep personal data for any longer than is necessary considering the purposes for which that data was originally collected and processed.

The club will verify whether statutory data retention periods exist in relation to the type of processing e.g., personal data may need to be kept in order to comply with financial, tax, health and safety, or employment regulations etc. If the law is silent, internal data retention periods will be set to meet the storage limitation principle. Retention periods will be set considering the purpose or purpose for which the data is collected and used, and once the storage periods expire, data will be securely deleted/destroyed in the absence of a sound new lawful basis to retain it. However, personal data may be stored for longer periods by Norstar. The personal data will be processed solely for archiving purposes in the public interest, scientific, historical research or statistical purposes ensuring appropriate safeguards are in place i.e. irreversibly anonymised.

Secure Processing

Norstar will ensure that all personal data collected and processed is kept secure and protected against unauthorised or unlawful processing and against accidental loss, destruction or damage. The state of technological development, the cost of implementing the measures, the nature of the data concerned and the degree of harm that might result from unauthorised or unlawful processing are all taken into account when the club are determining the security measures that are put in place.

Accountability

Under the GDPR, organisations are obliged to demonstrate that their processing activities are compliant with the Data Protection Principles. The principle of accountability seeks to guarantee the enforcement of the Principles.

- In order to assess the potential risks arising out of any new processing activity the GDPR requires organisations to conduct a Data Protection Impact Assessment

(DPIA). The club will demonstrate its compliance by carrying out assessments whenever any new processing activity is proposed, especially where it involves new technologies, resulting in a high degree of risk for data subjects. After the DPIA has been carried out and if all the risks cannot be mitigated, then Norstar will consult with the Office of the Data Protection Commissioner prior to beginning processing. The DPIA will be overseen by the Norstar Compliance Officer and the DPIA's will be filed and retained as proof of compliance.

- Club Secretary will act as Data Protection Officer if its core data processing activities involve:
 - Regular and systematic monitoring of data subjects on a large scale; or •
 - Processing sensitive personal data on a large scale.
- Norstar maintains a data protection document framework i.e. policies & procedures, training records etc.
- Norstar ensures that data protection by design is addressed throughout the life cycle of any processing activity but especially at the time of planning the means and type of processing and during the processing itself. Necessary safeguards are integrated into the club's systems with the use of data minimisation and pseudonymisation as privacy enhancing tools. The club assesses the risks of a process and tries to mitigate those risks in order to meet the data protection by design requirements.
- Norstar also ensures that data protection by default is implemented by choosing the most data protective setting as the default i.e. users will have to opt in to any settings that presents greater risks. By default, only the personal data that is necessary is processed.

THE RIGHTS OF DATA SUBJECTS

Individuals have rights to their data which we must respect and comply with to the best of our ability. will implement a procedure to ensure subject access requests are managed in an efficient and timely manner. As part of the day-to-day operation of the organisation, Norstar will engage in active and regular exchanges of information with Data Subjects. Where a formal request is submitted by a Data Subject in relation to the data held by the club, such a request gives rise to access rights in favour of the Data Subject, the Regulation sets out the following rights applicable to data subjects:

- The right to be informed
- The right of access.
- The right of rectification.
- The right to erasure (also known as the “right to be forgotten”).
- The right to restrict processing.
- The right to data portability.

- The right to object.
- Rights with respect to automated decision-making and profiling.
- The right to withdraw consent.

Norstar will ensure that such requests are processed as quickly and efficiently as possible.

TRANSFERRING PERSONAL DATA TO A COUNTRY OUTSIDE THE EEA

Norstar will avoid transferring personal data to countries outside the Economic European Area (EEA). There may be times when this may occur but will only take place if one or more of the following applies:

- Is a country that the European Commission has determined to have an adequate level of protection for personal data.
- The transfer is to a country (or international organisation) which provides appropriate safeguards in the form of a legally binding agreement between public authorities or bodies; binding corporate rules; standard data protection clauses adopted by the European Commission; compliance with an approved code of conduct approved by a supervisory authority; certification under an approved certification mechanism as provided for in the Regulation; contractual clauses agreed and authorised by the competent supervisory authority; or provisions inserted into administrative arrangements between public authorities or bodies authorised by the competent supervisory authority.
- The transfer is made with the informed consent of the relevant data subject(s).
- The transfer is necessary for the performance of a contract between the data subject and Norstar
- The transfer is necessary for important public interest reasons.
- The transfer is necessary for the conduct of legal claims.
- The transfer is necessary to protect the vital interests of the data subjects or other individuals where the data subject is physically or legally unable to give their consent.
or

DATA BREACH NOTIFICATION

Any breach of this policy or of data protection laws must be reported as soon as practically possible. This means as soon as you have become aware of a breach. Norstar has an obligation to report any data breaches to the Information Commissioner's Office within 72 hours.

All volunteers have an obligation to report actual or potential data protection compliance failures. This allows us to:

- Investigate the failure and take remedial steps if necessary
- Maintain a register of compliance failures
- Notify the Information Commissioner's Office of any compliance failures that are material either in their own right or as part of a pattern of failures

Any volunteer who fails to notify of a breach or is found to have known or suspected a breach has occurred but has not followed the correct reporting procedures will be liable to disciplinary action.

IMPLEMENTATION

Norstar ensures that any entity which processes Personal Data on its behalf (a Data Processor) does so in a manner compliant with the Regulations.

Failure of a Data Processor to manage Norstar's data in a compliant manner will be viewed as a breach of contract.

Failure of a Norstar volunteer to process Personal Data in compliance with this policy may result in disciplinary proceedings.

COMPLIANCE OFFICER

Wendy Muir

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POLICY APPROVAL

This Policy will be reviewed and updated on an annual basis, or sooner if required. This Policy has been approved by committee on 28th February 2024.

Review date: 28th February 2025

Signed:

Name	Position	Signed
Wendy Muir	Secretary	